

26STCV04666 26STCV04666

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I. Background

Plaintiff,

Treshawn Eugene Phillips, sues Defendant AIDS Healthcare Foundation—other Defendants since dismissed—pursuant to a February 13, 2026, Complaint alleging claims of Premises Liability and General Negligence. Plaintiff's claims arise from cursory allegations that on April 6, 2024, Plaintiff sustained injuries to his person when an elevator in which Plaintiff was passenger, owned and operated by Defendants, suddenly dropped.

Defendant AIDS

Healthcare Foundation has filed a demurrer to Plaintiff's Complaint on the ground that Plaintiff's claims are barred by a previously executed release and an entry of judgment in a prior class action lawsuit—20STCV08627, Tammy Davis v. AIDS Healthcare Foundation (the "Davis class action")—and that Plaintiff is claim splitting by attempting to bring this action.

Plaintiff has

filed an opposition. No reply appears in the record. Defendant's demurrer is now before the Court.

II. Demurrer

A. Requests for Judicial Notice

Pursuant to

Evidence Code section 452, subdivision (d), and based on the nature of the

documents, the Court takes judicial notice of Exhibits 1 to 11 filed with the request for judicial notice accompanying Defendant's demurrer.

B. Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; see Code Civ. Proc., § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212, superseded by statute as stated in Branick v. Downey Savings & Loan Assn. (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, Jones v. Lodge at Torrey Pines Partnership (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A demurrer may only be used to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318 (Blank).) The face of the complaint includes exhibits attached to the complaint. (Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94.) If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence. (Holland v. Morse Diesel Intern., Inc. (2001) 86 Cal.App.4th 1443, 1447, superseded by statute on other grounds as stated in White v. Cridlebaugh (2009) 178

Cal.App.4th 506, 521.)

C. Discussion

The Court finds in favor of Plaintiff.

The Court has taken judicial notice of Exhibits 1 through 11 filed with Defendants' demurrer, which Defendant filed in support of its argument that a general release and a judgment in the Davis class action bar Plaintiff's claims in this action.

Yet, in ruling on a demurrer, a court's function is limited to testing the legal sufficiency of the complaint (*Marina Tenants Assn. v. Deauville Marina Development Co.* (1986) 181 Cal.App.3d 122, 127), where a demurrer is simply not the appropriate procedure for determining the truth of disputed facts (*Ramsden v. Western Union* (1977) 71 Cal.App.3d 873, 879; *Intengan v. BAC Home Loans Servicing LP* (2013) 214 Cal.App.4th 1047, 1058). Relatedly, the hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of documents whose truthfulness or proper interpretation are disputable. (*Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 375.) Crucially, judicial notice of matters upon demurrer will thus be dispositive only in those instances where there is not or cannot be a factual dispute concerning that which is sought to be judicially noticed. (*Cruz v. County of Los Angeles* (1985) 173 Cal.App.3d 1131, 1134 (*Cruz*).)

Given that the demurrer turns on whether the Complaint in conjunction with judicially noticed documents show Plaintiff's claim in this action are barred, there are two related issues before the Court under *Cruz*: On demurrer, do the judicially noticed documents show no factual disputes regarding whether a general release or the judgment in the Davis class action bars Plaintiff's claims in this action, such that the Court can make a legal determination on the sufficiency of the Complaint by juxtaposing the noticed documents with the Complaint?

As to both, the

Court answers no, and Defendant's demurrer fails.

An obligation is

extinguished by a release therefrom given to the debtor or the released party by the creditor or releasing party, upon a new consideration, or in writing, with or without new consideration. (Civ. Code, § 1541.) Here, Defendant's demurrer relies on Exhibit 5 attached to its request for judicial notice to argue that Plaintiff released rights to the claims asserted in this action. (See Demurrer, pp. 5-6.) Yet, neither the Complaint in this action nor the judicially noticed documents show a release from Plaintiff to Defendant because Plaintiff's name is nowhere to be found in those documents other than in Exhibit 11, which is a printout of the docket for this action, not the Davis action. (Compare Demurrer, RJN, Exs. 1-10 [documents relating to the Davis action but failing to show a release, never naming a "Treshawn" or "Eugene" therein, and naming "Phillips" only once in relation to a declaration not attributable on its face to the Plaintiff (Demurrer, RJN, Ex. 2, p. 15) and twice in cited case law (*id.* at Ex. 6, pp. iv, 8)].)

Res judicata also

fails. A general demurrer lies where claim preclusion applies. (*Shine v. Williams-Sonoma, Inc.* (2018) 23 Cal.App.5th 1070, 1076-77 [court properly took judicial notice of "pleading, settlement agreement, and stipulated judgment of dismissal" in earlier class action to sustain demurrer on res judicata grounds in new class action].) Claim preclusion requires the same cause of action, the same parties or successors (privity), and a final judgment. (*DNK Holdings LLC v. Faerber* (2015) 61 Cal.4th 813, 824.) Two of these elements—privity and same causes of action—are missing for demurrer purposes. As to privity, Plaintiff's Complaint fails to allege and the judicially noticed documents fail to show a connection between Plaintiff and the Davis class action—even if the opposition tacitly concedes Plaintiff was part of the Davis class action. As to same claims, Plaintiff's Complaint fails to allege and the judicially noticed documents fail to show that the claims released in the Davis class action (Demurrer, RJN, Ex. 10) relate to the claims alleged in this action. Specifically, because Plaintiff's Complaint and the judicially noticed documents fail to show a connection to Plaintiff, it cannot be determined for demurrer purposes whether Plaintiff's claims in this action involve the same primary rights as those at issue in the judgment entered in the Davis action. Moreover, the parties' papers show a factual dispute regarding whether the causes of action at issue in the Davis class action judgment overlap with those arising from the claims alleged here. Legal sufficiency cannot be

tested under those circumstances.

Accordingly, Defendant

AIDS Healthcare Foundation's demurrer is OVERRULED.

III. Conclusion

Defendant AIDS

Healthcare Foundation's demurrer is OVERRULED.

Defendant is

ordered to give notice.